

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

September 26, 2022

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers and via electronic conference meeting. Present were: MAYOR – Patrick Collins, COUNCIL MEMBERS – Dr. Michelle Aldrich, Bryan Cook, Ken Esquibel, Richard Johnson, Pete Laybourn, Dr. Mark Rinne, Tom Segrave and Jeff White. Absent: Scott Roybal. Also present: Kristina F. Jones, City Clerk. The pledge of allegiance was recited.

Mayor Collins announced the legal advertisement published on September 23, 2022 in the Wyoming Tribune-Eagle related to the public hearing for a proposed trade of property between the City of Cheyenne and Mark Eisele contained a typographical date error and advised the public hearing will be held on October 10, 2022 as announced on the agenda.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Upon request by Dr. Rinne and pursuant to support received by Mr. Cook and Mr. Esquibel, item #17 was removed from the Consent Agenda. Upon request by Mr. Cook and pursuant to support received by Dr. Aldrich and Mr. Johnson, item #18 was removed from the Consent Agenda. Upon request by Dr. Aldrich and pursuant to support received by Mr. Cook and Mr. Johnson, item #24(f) was removed from the Consent Agenda. Upon request by Mr. White and pursuant to support received by Mr. Cook and Mr. Esquibel, item #25(a) was removed from the Consent Agenda. Mr. Johnson moved to approve remaining items, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on September 12, 2022. Motion (per Consent Agenda) carried.

ORDINANCE –EMERGENCY READING – Amending Section 10.08.010, State Law Adopted, of Chapter 10.08, State Traffic Laws Adopted, of Title 10, Vehicles and Traffic, of the Municipal Code of the City of Cheyenne, Wyoming, to update the incorporation of state motor vehicle statutes. Mr. Cook moved to suspend the rules pursuant to State Statute §15-1-115(c), seconded by Dr. Aldrich. Motion to suspend the rules carried. Voting “yes” – all members of the governing body present with the exception of Mr. Johnson voting “no”. Mr. Cook moved to approve, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body present with the exception of Mr. Johnson voting “no”. Comments were made by the following members of the governing body: Dr. Aldrich, Mayor Collins, Mr. Esquibel, Mr. Johnson, Mr. Laybourn and Mr. White. (#4463)

ORDINANCE – 3rd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from HR High-Density Residential to CB Community Business for land located north of and adjacent to the intersection of Dell Range Boulevard and Moran Avenue. Reporting for Public Services Committee, Mr. Cook moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body present with the exception of Mr. Johnson and Dr. Rinne voting “no”. Public comment was made by: Michael White, Cushing Terrell, on behalf of Les Schwab Tires. Comments were made by the following members of the governing body: Dr. Aldrich. (#4464)

ORDINANCE – 3rd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from MR Medium-Density Residential to NR-2 Neighborhood Residential – Medium Density for land located south of 12th Street, east of Logan Avenue. Mr. Cook moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body present. Public comment was made by: Kirk Johanson, property owner. (#4465)

ORDINANCE – 3rd READING – Amending Section 2.32.020, Department Personnel, of Chapter 2.32, Fire Department, of Title 2, Administration and Personnel, to amend provision governing the appointment of Fire Department Personnel. Mr. Cook moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body present. (#4466)

ORDINANCE – 2nd READING – Amending Section 10.12.160, Authority to Impound Illegally Parked Vehicles, and Section 10.12.170, Immobilization, of Title 10, Vehicles and Traffic, modifying time period for vehicle impoundment after immobilization. Mr. Cook moved to approve on second reading, seconded by Mr. White. Mr. Cook moved to amend by substitute dated September 20, 2022, seconded by Mr. Segrave. Motion to amend by substitute carried. Voting “yes” – all members of the governing body present with the exception of Mr. Johnson voting “no”. Main motion as amended by substitute carried. Voting “yes” – all members of the governing body present with the exception of Mr. Johnson voting “no”. Comments were made by the following members of the governing body: Dr. Aldrich and Mr. Johnson.

ORDINANCE – 2nd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from MUB Mixed-Use Business Emphasis to CB Community Business for land north of Pershing Boulevard, east of College Drive. Mr. Cook moved to approve on second reading, seconded by Mr. Johnson. Motion carried. Voting “yes” – all members of the governing body present. Public comment was made by: Ben Hornok, Project Manager. Comments were made by the following members of the governing body: Dr. Aldrich.

ORDINANCE –2nd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from Swan Ranch PUD Planned Unit Development (Ordinance #3989) to CB Community Business for land located north of High Plains Road, west of I-25. Mr. Cook moved to approve on second reading, seconded by Mr. Johnson. Motion carried. Voting “yes” – all members of the governing body present. Public comment was made by: Shane Hansen, Steil Surveying. Comments were made by the following members of the governing body: Mayor Collins.

ORDINANCE –1st READING – Amending Section 9.08.020, Annoying, Obscene or Threatening Telephone Calls, of Chapter 9.08, Offenses Against Public Peace and Decency, of Title 9, Public Peace and Welfare, of the Municipal Code of the City of Cheyenne, Wyoming, modifying the elements of the offense of annoying, obscene or threatening telephone calls – referred to Finance Committee. (Sponsor – Mr. Esquibel)

RESOLUTION – Reappropriating the Fiscal Year 2023 Budget of the City of Cheyenne according to the provisions of W.S. §§ 16-4-112 & 16-4-113. Reporting for Finance Committee, Mr. White moved to adopt, seconded by Mr. Johnson. Mr. White moved to amend by substitute dated September 13, 2022, seconded by Mr. Johnson. Motion to amend by substitute carried. Voting “yes” – all members of the governing body present. Main motion as amended by substitute carried. Voting “yes” – all members of the governing body present. Comments were made by the following members of the governing body: Mr. Cook. (#6269)

[CA] RESOLUTION – Expressing the support of the Governing Body to conduct a review of Downtown Parking Enforcement. Motion (per Consent Agenda) carried. (#6270)

RESOLUTION – Expressing the will of the Governing Body directing the Mayor to hire a Special Projects Manager to assist the City of Cheyenne in managing and coordinating certain 6th Penny Tax Projects and other City project priorities. Mr. White moved to adopt, seconded by Mr. Segrave. Mr. White moved to amend by substitute dated September 6, 2022, seconded by Mr. Segrave. Motion to amend by substitute failed. Voting “yes” – Mr. Laybourn and Mr. Segrave. Voting “no” – Dr. Aldrich, Mr. Cook, Mr. Esquibel, Mr. Johnson, Dr. Rinne and Mr. White. Main motion failed. Voting “yes” – Mr. Laybourn and Mr. Segrave. Voting “no” - Dr. Aldrich, Mr. Cook, Mr. Esquibel, Mr. Johnson, Dr. Rinne and Mr. White. Comments were made by the following members of the governing body: Dr. Aldrich, Mr. Cook, Mr. Johnson and Dr. Rinne.

RESOLUTION – Expressing the will of the Governing Body to prioritize and adequately fund specified Downtown 6th Penny Tax Maintenance and Improvement Projects. Mr. White moved to adopt, seconded by Mr. Esquibel. Motion carried. Voting “yes” – all members of the governing body present. Comments were made by the following members of the governing body: Mr. Johnson, Mr. Laybourn and Dr. Rinne. (#6271)

RESOLUTION – Authorizing the Mayor and the City Clerk to sign a Final Plat for Lake Minnehaha III, a replat of Lots 1 and 1½, Block 18, resubdivision of Lake Minnehaha, City of Cheyenne, Laramie County, Wyoming (located southwest of the intersection of 12th Street and Carbon Avenue). Mr. Cook moved to adopt, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body present. (#6272)

RESOLUTION – Extending the City approval of an exception to the ‘201 Agreement’ for the owner of the property located at 4120 and 4121 West 5th Street to allow the continuation of on-site septic systems located within the City and in unincorporated Laramie County. Mr. Cook moved to adopt, seconded by Mr. White. Motion carried. Voting “yes” – Mr. Cook, Mr. Esquibel, Mr. Laybourn, Dr. Rinne and Mr. White. Voting “no” - Dr. Aldrich, Mayor Collins, Mr. Johnson and Mr. Segrave. Public comment was made by: Scott Henderson, WYDOT. Comments were made by the following members of the governing body: Mayor Collins, Mr. Laybourn, Dr. Rinne and Mr. Segrave. (#6273)

RESOLUTION – Granting an exception to the ‘201 Agreement’ for the owner of the property located at 516 Pontillo Drive to allow to allow the creation of a new on-site septic system located within Laramie County. Mr. Cook moved to adopt, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body present with the exception of Mr. Segrave voting “no”. Public comment was made by: Devon McHenry, property owner, and Laramie County Commissioner Gunner Malm. Comments were made by the following members of the governing body: Dr. Aldrich, Dr. Rinne and Mr. Segrave. (#6274)

[CA] RESOLUTION – Authorizing the acceptance of a FY21 Building Resilient Infrastructure and Communities Grant for scoping and design work for the Cheyenne Clear Creek Detention Storage Facility – referred to Finance Committee. (Sponsor – Mr. White)

[CA] RESOLUTION – Authorizing the acceptance of a FY21 Building Resilient Infrastructure and Communities grant for scoping and design work for the Cheyenne Crow Creek 19th Street Crossing Improvement Project – referred to Finance Committee. (Sponsor – Mr. White)

Preliminary Plat for Harmony Valley, 3rd Filing, a replat of Lot 1, Block 1, Interior Heights 4th Filing; and Lot 1 & Lot 2, Block 10, Harmony Valley 1st Filing, City of Cheyenne, Laramie County, Wyoming (located between Allison Road and College Drive, west of Walterscheid Boulevard). Mr. Cook moved to acknowledge Planning Commission’s recommendation to approve with staff conditions #1-3, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body present.

[CA] Professional Services Agreement between the City of Cheyenne, Cheyenne Fire & Rescue Department, and TimeClockPlus (TCP), of San Angelo, Texas, for scheduling software (General Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$31,868.00). (#7600)

[CA] Contract between the City of Cheyenne, Cheyenne Police Department, and the Wyoming Department of Transportation for Impaired Driving High Visibility Overtime Enforcement (Highway Safety Grant). Motion (per Consent Agenda) carried (in an amount not to exceed \$48,114.25) carried. (#7601)

[CA] Contract between the City of Cheyenne, Cheyenne Police Department, and the Wyoming Department of Transportation for Occupant Protection High Visibility Overtime Enforcement (Highway Safety Grant). Motion (per Consent Agenda) carried (in an amount not to exceed \$36,530.59). (#7602)

Contract between the City of Cheyenne and the Cheyenne Housing Authority to provide supportive senior services (General Fund). Mr. White moved to approve in an amount not to exceed \$50,000.00, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body present. Public comment was made by: Erin LeBlanc, Director of Senior Services. Comments were made by the following members of the governing body: Dr. Aldrich. (#7603)

Contract between the City of Cheyenne and Volunteers of American Northern Rockies, Alcohol Receiving Center, to provide alcohol and drug detoxication services (General Fund). Mr. White moved to approve in an amount not to exceed \$136,875.00, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body present. Comments were made by the following members of the governing body: Dr. Aldrich, Mayor Collins, Mr. Cook, Mr. Johnson, Mr. Laybourn, and Dr. Rinne. (#7604)

Contract between the City of Cheyenne and Safe Harbor to provide a safe and secure environment to families who have been affected by abuse (General Fund). Mr. White moved to approve in an amount not to exceed \$17,500.00, seconded by Dr. Aldrich. Motion carried. Voting “yes” – all members of the governing body present. Public comment was made by: Lynn Storey-Huyler, Executive Director of Safe Harbor. Comments were made by the following members of the governing body: Dr. Aldrich, Mr. Johnson, Mr. Laybourn and Dr. Rinne. (#7605)

Access License Agreement between the City of Cheyenne and Retail Properties C, LLC for ingress and egress access purposes (General Fund). Mr. White moved to approve. Motion died due to lack of a second.

[CA] Agreement between the City of Cheyenne Transit Program and the Wyoming Department of Health, Aging Division, to provide transportation support services to persons 60 years or older under the Title III-B Program Grant for FY 23 (Title III-B Division of Aging Grant) – referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne, Cheyenne Metropolitan Planning Organization (MPO), and Y2 Consultants, LLC, for the Van Buren Avenue Corridor Study (MPO Federal Funds) – referred to Finance Committee.

[CA] Telecommunications Right-of-Way License and Use Agreement between the City of Cheyenne and Uniti Dark Fiber LLC (Revenue to the City) – referred to Finance Committee.

[CA] Agreement between the City of Cheyenne and Cheyenne Rail Hub, LLC, to provide for the temporary storage of railcars owned by the City of Cheyenne (2017 Specific Purpose Option Tax Fund and EDA No. 05-79-06167 Cheyenne Railcar Project Grant) – referred to Finance Committee.

[CA] Agreement between the City of Cheyenne and Mark Eisele, King Ranch Company, LP, for the purchase, sale and exchange of lands – referred to Finance Committee.

[CA] Professional Services Agreement between the City of Cheyenne and Quandt Consultants for the Reed Avenue Rail Corridor Scoping and Railroad Negotiation Project (2017-2021 Specific Purpose Option Tax Fund) – referred to Finance Committee.

Amendment #2 to Contract #5939 between the City of Cheyenne and The Lamar Companies for billboard leases (Revenue to the City). Mr. White moved to approve, seconded by Dr. Aldrich. Motion failed. Voting “yes” – Dr. Aldrich, Mr. Cook, Mr. Johnson and Mr. Segrave. Voting “no” - Mayor Collins, Mr. Esquibel, Mr. Laybourn, Dr. Rinne and Mr. White. Comments were made by the following members of the governing body: Dr. Aldrich, Mayor Collins, Mr. Esquibel, Mr. Johnson, Mr. Laybourn, Dr. Rinne, Mr. Segrave and Mr. White.

[CA] Contract Modification #1 to Contract #7488 between the City of Cheyenne and MHP, LLP to provide financial and compliance auditing services for the City of Cheyenne and the Cheyenne Board of Public Utilities for fiscal year ending June 30, 2022 (American Rescue Plan Funds) Motion (per Consent Agenda) carried (in an amount not to exceed \$10,500.00). (#7488)

[CA] Contract Modification #1 to Contract #7504 between the City of Cheyenne and FCI Constructors of Wyoming LLC for the Emergency Response Facilities Guaranteed Maximum Price (GMP) (2021 Specific Purpose Option Tax Fund and 2017 Specific Purpose Option Tax Fund Overages) Motion (per Consent Agenda) carried (in an amount not to exceed \$20,497,716.00). (#7504)

[CA] Contract Modification #1 to Contract #6612 between the City of Cheyenne, the Nature Conservancy, and Larimer County, Colorado, for the cooperative management of 1,800 acres of land (known generally as the Laramie Foothill Red Mountain Ranch-Wyoming, also known as the Big Hole) – referred to Finance Committee.

Consideration to purchase between the City of Cheyenne and Econolite, for four (4) traffic controller cabinets for the City of Cheyenne Traffic Division (2019-2022 Optional 1% Sales Tax Fund). Mr. White moved to approve in an amount not to exceed \$38,700.00, seconded by Mr. Esquibel. Motion carried. Voting “yes” – all members of the governing body present.

[CA] Consideration of Bid #E-2-23 for one (1) new 2022-2024 patch truck for the City of Cheyenne Street & Alley Division (2019-2022 1% Specific Purpose Option Tax Fund) – referred to Finance Committee.

[CA] Consideration of Bid #E-4-23 for ice control product for the City of Cheyenne Street & Alley Division (2019-2022 1% Specific Purpose Option Tax Fund) – referred to Finance Committee.

[CA] Consideration of Bid #E-5-23 for bulk fertilizer application for the City of Cheyenne Parks Division (2019-2022 1% Specific Purpose Option Tax Fund, Recreation Fund & General Fund) – referred to Finance Committee.

[CA] Consideration of Bid #S-2-23 for an agreement between the City of Cheyenne and Judge Netting Mountain West for the Happy Jack Landfill Litter Fence Repair Project (Solid Waste Fund) – referred to Finance Committee.

Urban Renewal Authority 2021 Annual Report. Dr. Aldrich moved to acknowledge receipt of the annual report, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body present. Comments were made by the following members of the governing body: Dr. Aldrich and Mr. Johnson.

Reappointment of Brittany Winges to the Cheyenne Housing Authority. Mr. Segrave moved to approve, seconded by Dr. Aldrich. Motion carried. Voting “yes” – all members of the governing body present with the exception of Mayor Collins who did not vote (mayoral appointments).

Appointments of Ann Clement and Heather Glaser to the Mayor’s Council for People with Disabilities. Dr. Aldrich moved to approve, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body present with the exception of Mayor Collins who did not vote (mayoral appointments).

No comments were made on the Voucher Report as presented.

No comments were made on the Revenue Report as presented.

Announcement was made of a Public Hearing to be held October 10, 2022 at 6:00 p.m. in City Council Chambers, 2101 O’Neil Avenue, Cheyenne, WY, and via electronic conference meeting, to determine whether compliance of annexation conditions required by Wyoming Statute §15-1-402 exist for about 1,280 acres of land situated in a portion of Sections 14, 23 and 24, Township 13 North, Range 67 West, and Section 19, Township 13 North, Range 66 West, Laramie County, WY (located between Clear Creek Parkway and South Greeley Highway, south of College Drive).

Announcement was made of a Public Hearing to be held October 10, 2022 at 6:00 p.m. in City Council Chambers, 2101 O’Neil Avenue, Cheyenne, WY, and via electronic conference meeting, for a proposed trade of real property owned by the City of Cheyenne, described as a tract of land situated in the northeast quarter of Section 23, Township 13 North, Range 68 West of the 6th P.M., Laramie County, Wyoming, consisting of 20.84 acres with an appraised value of \$52,000.00, to Mark Eisele for real property owned by Mark Eisele, described as a tract of land situated in the southwest quarter of Section 14, Township 13 North, Range 68 West of the 6th P.M., Laramie County, Wyoming, consisting of 13.85 acres with an appraised value of \$27,000.00.

Public comment was made by Jim Ridgeway under other business.

The following members of the governing body made comments under other business – Dr. Aldrich.

There being no further business to come before the governing body, the meeting was officially adjourned at 7:54 p.m.

Submitted by,

Kristina F. Jones,
City Clerk

This notice is available in alternative, accessible formats upon request.

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